

a verdict by the dictates and authority of another man, under pain of fines and imprisonment, when sworn to do it according to the best of their own knowledge :

A man cannot see by anothers eye, nor hear by anothers ear, no more can a man conclude or infer the thing to be resolv'd by anothers understanding or reasoning ; and though the verdict be right the jury give, yet they being not assur'd it is so from their own understanding, are forsworn, at least in foro conscientiæ.

[149] 9. It is absurd a jury should be fined by the Judge for going against their evidence, when he who fineth knows not what it is, as where a jury find without evidence in Court of either side, so if the jury find, upon their own knowledge, as the course is if the defendant plead solvit ad diem, to a bond prov'd, and offers no proof. The jury is directed to find for the plaintiff, unless they know payment was made of their own knowledge, according to the plea.

And it is as absurd to fine a jury for finding against their evidence, when the Judge knows but part of it ; for the better and greater part of the evidence may be wholly unknown to him ; and this may happen in most cases, and often doth, as in *Graves and Shorts case*.

Error of a judgment in the Common Bench, the error assign'd was, the issue being, whether a feoffment were made? and the jurors being done together to conferr of their verdict, one of them shew'd to the rest an escrow pro parentibus, not given in evidence by the parties per quod, they found for the demandant upon demurrer adjudg'd no error ; for it appears not to be given him by any of the parties, or any for them, it must be intended he had it as a piece of evidence about him before, and shew'd it to inform himself and his fellows, and as he might declare it as a witness, that he knew it to be true. They resolv'd, if that might have avoided the verdict, which they agreed it could not, yet it ought to have been done by examination, and not by error.

That decantatum in our books, ad quæstionem facti non respondent iudices, ad quæstionem legis non respondent juratores, literally taken is true : for if it be demanded, what is the fact? the Judge cannot answer it : if it be asked, what is the law in the case, the jury cannot answer it.

Therefore the parties agree the fact by their pleading upon demurrer, and ask the judgment of the Court for the law.

In special verdicts the jury inform the naked fact, and the Court deliver the law ; and so is it in demurrers upon evidence, in arrest of judgments upon challenges, and often upon the Judges opinion of the evidence given in Court, the plaintiff becomes nonsuit, when if the matter had been left to the jury, they might well have found for the plaintiff.

[150] But upon all general issues ; as upon not culpable pleaded in trespass, nil debet in debt, nul tort, nul disseisin in assize, ne disturba pas in quare impedit, and the like ; though it be matter of law whether the defendant be a trespassor, a debtor, disseisor, or disturber in the particular cases in issue ; yet the jury find not (as in a special verdict) the fact of every case by it self, leaving the law to the Court, but find for the plaintiff or defendant upon the issue to be tryed, wherein they resolve both law and fact complicately, and not the fact by it self ; so as though they answer not singly to the question what is the law, yet they determine the law in all matters where issue is joyn'd, and tryed in the principal case, but where the verdict is special.

To this purpose the Lord Hobart in *Needlers case* against *The Bishop of Winchester*, is very apposite—legally it will be very hard to quit a jury that finds against the law, either common law, or several statute law, whereof all men were to take knowledge, and whereupon verdict is to be given, whether any evidence be given to them or not. As if a feoffment or devise were made to one imperpetuum, and the jury should find cross, either an estate for life, or in fee-simple against the law, they should be subject to an attain, though no man informed them what the law was in that case.

The legal verdict of the jury to be recorded, is finding for the plaintiff or defendant, what they answer, if asked to questions concerning some particular fact, is not of their verdict essentially, nor are they bound to agree in such particulars ; if they all agree to find their issue for the plaintiff or defendant, they may differ in the motives wherefore, as well as Judges, in giving judgment for the plaintiff or defendant, may differ in the reasons wherefore they give that judgment, which is very ordinary.

I conclude with the statute of 26 H. 8, c. 4, that if any jurors in Wales do acquit